HCC24/26
HCCR492/26

THE STATE

Versus

NYAMADZAWO SYLVESTER

HIGH COURT OF ZIMBABWE
BACHI MZAWAZI J
CHINHOYI, 08 JUNE 2026

Assessors: *1. Dr. Mashavave*
2.Mr.Kamanga

R.Nikisi, for the State
P. Sosono, for the accused

Criminal Trial

BACHI MZAWAZI J: The accused person is facing one count of murder as defined in s47 of the Criminal law Code [Chapter 9:23]. He pleads not guilty to the offence citing self-defence.

Common cause facts

The circumstances surrounding the commission of the offence are not in dispute. The accused and the deceased *Clifton Mapurisa* were related. Accused was asked by the deceased's mother to look after her homestead at Plot 36 Red Mile Farm, Banket, whilst she travelled to Harare. After spending the whole day doing part-time jobs elsewhere, the accused learnt from the shopping centre that the deceased had stolen maize from the place he had been assigned to guard. He was told that the two and half buckets of maize had been sold. This was not lightly accepted by the accused who then left in search of the deceased.

He found the deceased resting at an uncle's residence, after a drinking spree. The accused entered the residence and pulled the deceased demanding to be shown where the

deceased had sold the maize. From the accused's own testimony in court corroborating the averments on the State case summary, the deceased was not cooperative as he questioned the accused's right, since the maize was not his in the first place.

A struggle ensued whereby the accused was dragging the deceased outside whilst the deceased was holding the fort and resisting. The accused person then armed himself with a switch which has been shown to the court as an exhibit 4. He then persistently and relentlessly assaulted the deceased on the abdomen region of the body.

So intense were the blows, that they did not only attract the attention of the single State eye witness, but that they broke the rib cage housing the lungs. As a result, fatal damage was done to the lungs which were lacerated. The gall bladder was not only punctured but severed, leaking its entire contents into the stomach as portrayed by the autopsy report. The cause of death is written as cardio respiratory arrest secondary to ruptured lung.

Gamuchirai Bangajena, a male adult neighbour, the State witness, stayed a few metres from where the offence was committed. He attested that his attention was drawn by heavy thunderous thuds coming from his neighbour's house. The thudding sound was not only heavy, like the pounding of yam but was non-stop. These were accompanied by a single voice of the perpetrator, which he later identified as the accused.

When he went to investigate, he witnessed the accused beating the deceased with the thick switch whilst demanding that the deceased takes him to where he had sold the maize. The witness approached the scene and retrieved the murder weapon from the accused but the damage had already been done. Un deterred the accused then searched for yet another log but was also dispossessed of the same. The witness found the deceased being heavily assaulted immobile in a sitting position. He was sobbing but could no longer speak. We found the witness, consistent, coherent and credible.

The accused, though he had initially raised self-defence was honest enough not to pursue it. He corroborated the State witness's evidence. He admitted that, when he heard of the theft in

his absence of the maize that had been left in his care, his main aim and mission was to recover the stolen loot at any cost. He did not deny the rest of the State evidence. Initially, he stated that in effort to force march the deceased out of his sanctuary, they both exchanged blows. This, though appearing in his confirmed warned and cautioned statement was abandoned as he admitted to a tussle not a fight.

In his oral closing submissions, *Mr. Nikisi,* the State counsel urged the court to convict the accused for murder with constructive intent as there was no evidence supporting actual intent. The defence, *Mr Sosono* also submitted that a finding of murder with legal intention was the most appropriate in the circumstances of this case.

We agree with both counsels, that all evidence on record point to murder with constructive intent. The distinction between murder with actual intent and murder with constructive intent, has been propounded by several authorities in this jurisdiction and needs no repetition. What features in murder with actual intent, is that, the accused person premeditates and sets out to achieve his objective of ending the life of his victim and succeeds in doing so. With murder with legal intent, as correctly captured by *Mr. Nikisi*, there is a risk of the possibility that murder will be an eventuality through the use of weapon, the force that would have been used, the area where the blows are aimed and the repeated acts of achieving the end.

See, *Ndlovu and Gadzira v the State SC36/14* amongst many others.

Accordingly, the accused is found guilty of murder with constructive intent

Sentencing judgment

The accused stands convicted of murder with constructive intention. The facts are by and large common cause. After hearing submissions, in mitigation aggravation and the victim impact statement as well as the sentencing report the court has arrived at the following conclusion.

Aggravation

In aggravation, the accused, was the aggressor. He followed the deceased to his uncle's house where he was resting. Accused had resolved to force march the deceased to where he sold

the stolen maize by any means necessary. He selected a thick log and assaulted the immobilised deceased repeatedly until his protected internal organs were injured. He did not want to stop even after the intervention of the neighbour. He failed to stop even when the deceased was helplessly lying down and not fighting back or warding off the blows.

The repeated blows, their intensity, the area of the human torso to where these blows were aimed all paint a very grim picture. The rib cage is nature's way of protecting the internal organs. The force used to penetrate such a safe net was thus extreme. As a result, precious life was needlessly lost. A father of two, and a family man lost his life over a mere two and half buckets of maize. The maize which belonged to his mother whose estate he was an heir apparent. How sad?

JUSTICE KAMOCHA J in *S v Gumbi* HB24/15, faced with a similar set of facts exclaimed,

"Accused perpetrated a prolonged assault on the deceased using a wet stick, which he called a switch, all over the body. He struck her with exhibit 5 …on the head a very vulnerable part of the human body."

The sanctity of human life can never be overstated. It seems some members of society are slow to learn the need to resolve disputes without resorting to violence. Even with village heads and chief at every communal door step, society is failing to take heed. They still want to take the law into their own hands and mete out instant justice. There is need to respect law enforcement mechanisms and authorities.

Victim impact Statement

The deceased's mother gave the statement. She was visibly and permanently broken. She regretted her decision to leave the accused on watch over her property. We learnt that deceased was a non-violent peace- loving family man. He left two young children, now orphaned and financially deprived. The deceased's wife has since returned to her biological family roots. The deceased's mother who is of advanced age is the one looking after her sick husband and the children with the aid of one of her daughters.

Sentencing Report/Mitigation

The paternal uncle of the accused informed the court that the accused was orphaned at the age of 9 years. He lost both parents. He is the one who brought him up. He confessed to accused having no history of violence. He financed his education up to the Ordinary level.

The court could not help but notice that the accused person falls into that group of people who can be termed of very low intellect. They are not mentally retarded but unsophisticated and of very limited or slow thinking capacity. It is because of these characteristics that the accused had earned positions of trust within the community. The deceased's mother elected to trust him with her household and maize stores over her own son, the deceased.

Uncommon in rural set-ups and folks, at the age of 29 years, he was neither married nor had children. In court, he was honest. He did not try to lie or exaggerate. From the manner the offence was committed, what is evident is an eruption of years after years of pent- up anger and bottled emotions. This is the plight of most people orphaned at a tender age. They grow up with a lot of unanswered questions. They may also suffer the brunt of preferential treatment or ill treatment. They suffer silently. It only takes one incident for them to snap, for the volcano to erupt. The manner in which this offence was committed bears testimony to that against the general historical background of the accused.

The court in sentencing the accused has been strongly swayed by the mitigatory factors. However, the court can only operate within the confines of the law. Murder with constructive intent deserves an inevitable long jail term.

In *Mpofu and Mlilo v the State,* CCZ05/16, the apex court of the land confirmed a 20-year, jail term in a matter that had been brought before it on constitutional issues.

In *S v Muchadei*, HMT03/20 a sentence of 20 years was found appropriate in the circumstances of that case. In S *v Gumbi* (supra) a sentence of 18 years was imposed.

Sentence

In *casu,* tampering justice with mercy, the accused is sentenced to 15 years imprisonment.

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The National Prosecuting Authority for the State
Sosono legal Practitioners for the accused